



CHAPTER 7.

An Act to extend the power of the Governor-General of India to make acting appointments of judges of the Federal Court.
[26th February 1942.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) At the end of section two hundred and two of the Government of India Act, 1935, there shall be added the following subsection :—

Amendment
of s. 202 of the
Government
of India
Act, 1935.
26 Geo. 5. &
1 Edw. 8. c. 2.

“(3) If the Governor-General in his discretion is satisfied, after considering a report from the Chief Justice of India—

(a) that in view of some personal interest which any judge of the Federal Court has in the decision of any particular case, or of some part which any judge of the Federal Court has already taken, as judge or counsel or otherwise, in or in relation to any particular case (whether or not while it was before the Federal Court), that judge ought not to take part in the hearing and determination thereof, and

(b) that without that judge there are not sufficient judges of the Federal Court available to sit for that purpose,

the Governor-General may in his discretion appoint a judge of a High Court who is duly qualified for appointment as judge of the Federal Court to act temporarily as a judge of that court and the person so appointed shall, unless the Governor-General in his discretion thinks fit to revoke his

appointment, be deemed to be a judge of the Federal Court until that case has been heard and determined by the Federal Court."

(2) The amendment made by this Act in the Government of India Act, 1935, shall be deemed to have been made therein immediately before the passing thereof.

(3) A copy of the said Act giving effect to—

(a) the amendments mentioned in subsection (2) of section seventeen of the India and Burma (Miscellaneous Amendments) Act, 1940; and

(b) the amendment made by this Act,

shall be prepared and certified by the Clerk of the Parliaments and deposited with the Rolls of Parliament, and His Majesty's printer shall print in accordance with the copy so certified all copies of the Government of India Act, 1935, which are printed after the said copy has been so prepared, certified and deposited.

Short title.

2. This Act may be cited as the India (Federal Court Judges) Act, 1942.

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and
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